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February 10, 2025

By: Daniels

An Act relating to the Oklahoma Children's Code; prohibiting certain actions by the Department of Human Services in relation to adoptive and foster parents; providing certain construction; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-8-113 of Title 10A, unless there is created a duplication in numbering, reads as follows:

A. The Department of Human Services shall not:

1. Require any current or prospective adoptive or foster parent to affirm, accept, or support any government policy regarding sexual orientation or gender identity that conflicts with the parent's sincerely held religious or moral beliefs as a condition for eligibility to adopt or foster;

2. Deny a current or prospective adoptive or foster parent any authorization necessary to be eligible to adopt or foster based, in whole or in part, upon the parent's sincerely held religious or moral beliefs, or intent to guide, instruct, or raise a child

1 consistent with those beliefs, regarding sexual orientation or
2 gender identity; or

3 3. Establish or enforce any standard, rule, or policy that
4 precludes consideration of a current or prospective adoptive or
5 foster parent for any particular placement based, in whole or in
6 part, upon the parent's sincerely held religious or moral beliefs
7 regarding sexual orientation or gender identity.

8 B. Nothing in this section shall:

9 1. Preclude the Department from taking into account the
10 religious or moral beliefs of a particular adoptive or foster child,
11 or his or her family of origin including, but not limited to, the
12 child's or family's views regarding sexual orientation and gender
13 identity, considered in relation to the religious or moral beliefs
14 of a prospective adoptive or foster parent when determining which
15 placement is in the best interest of the child; or

16 2. Be construed to prohibit or relieve the Department of its
17 duty to make each placement consistent with the best interests of
18 the child as otherwise required by law.

19 SECTION 2. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
21 February 10, 2025 - DO PASS
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